

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Patrick Harrison	Team: Team # 2	CCRB Case #: 201016611	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 10/02/2010 11:50 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 4/2/2012	Precinct: 09
Date/Time CV Reported Mon, 12/06/2010 8:42 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 12/06/2010 8:42 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Daniel Silverio	23765	943816	009 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. An officer			

Officer(s)	Allegation	Investigator Recommendation
A . POM Daniel Silverio	Abuse: PO Daniel Silverio issued a summons to § 87(2)(b)	A . Complaint Withdrawn

Case Summary

At 8:42 a.m., on Monday, December 6, 2010, § 87(2)(b) called the CCRB to file this complaint.

At 11:50 a.m., on Saturday, October 2, 2010, § 87(2)(b) and his children § 87(2)(b) and § 87(2)(b) (last names not given) were in § 87(2)(b)'s car on § 87(2)(b) between § 87(2)(b) and § 87(2)(b) in Manhattan. § 87(2)(b) asked PO Daniel Silverio and an unidentified white male officer, who were eating lunch in an unmarked vehicle which was idling in a parking spot, if he could have their parking spot. PO Silverio agreed to it, and § 87(2)(b) thanked him. § 87(2)(b) and his children entered the gym which § 87(2)(b) owns at § 87(2)(b). PO Silverio walked into the gym and told § 87(2)(b) that he had heard § 87(2)(b) laughing at him. § 87(2)(b) stated that there was a misunderstanding, and that § 87(2)(b) had been laughing with his children about something else. PO Silverio wrote § 87(2)(b) a ticket for disorderly conduct (**Allegation A**). § 87(2)(b) also told the CCRB he suspected PO Silverio of having been involved in the slashing of his tires on October 4, 2010, § 87(2)(g)

On December 7, 2010, the undersigned investigator called § 87(2)(b) § 87(2)(b) and his wife § 87(2)(b) a witness to the incident, gave phone statements to the investigator. On December 12, 2010, § 87(2)(b) called the investigator to inform him that he wished to withdraw his CCRB complaint. § 87(2)(b) explained that he had talked to an NYPD detective friend of his about the incident, as well as to a member of IAB. § 87(2)(b) said that his summons had been taken care of and that the matter was resolved. § 87(2)(b) stated that he was withdrawing his complaint of his own free will and that no member of the CCRB or NYPD had coerced him to do so. Team Manager Denis McCormick reviewed the withdrawal recording. Therefore it is recommended that **Allegation A** be closed as **complaint withdrawn**.

Team: _____

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Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

